

23STCV30271 23STCV30271

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Case Number: 23STCV30271 Hearing Date: September 15, 2026 Dept: 224

Ocotitla v. Wil Fig LLC

TENTATIVE RULING

The Motion to Set Aside Default is DENIED.

ANALYSIS

Introduction

On December 12, 2023, Plaintiff Ana Ivette Ocotitla filed the Complaint in this action against Defendants Wil Fig LLC dba El Patron Cantina, a limited liability company; Russell Cen aka Russell Con aka Oswaldo Garcia, an individual; and Does 1-100, alleging eight causes of action arising from an alleged sexual assault by a coworker and the alleged reduction of her hours and pay after she reported it.

Defendant Wil Fig LLC appeared and filed an Answer to the Complaint.

On January 21, 2025, the Court granted the motion of Defendant Wil Fig LLC's counsel to be relieved. Defendant Wil Fig LLC thereafter remained unrepresented.

On September 10, 2025, following an Order to Show Cause hearing, the Court struck Defendant Wil Fig LLC's Answer and entered default against it. The Court set a default prove-up hearing for June 2026.

In May 2026, Plaintiff filed her Request for Entry of Default and application for court judgment, and dismissed the individual defendant Russell Cen and the Doe defendants without prejudice.

On June 26, 2026, Defendant Wil Fig LLC filed the instant Motion to Vacate Entry of Default and Default Judgment.

On June 30, 2026, Oakmont Law, PC filed a Notice of Limited Scope Representation on behalf of Defendant Wil Fig LLC, stating that the scope of its representation is limited to setting aside the entry of default and default judgment and to filing a responsive pleading.

On July 28, 2026, Plaintiff filed her Opposition to the Motion.

On September 8, 2026, Defendant filed a Reply.

Legal Standard

Code Civ. Proc., section 473.5 permits the Court to set aside a default and default judgment when the service of a summons has not resulted in actual notice to a party in time to defend the action. Code Civ. Proc., section 473.5 requires the motion to be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5.)² The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of the following:³

- 1) two years after entry of a default judgment against him or her; or⁴
- 2) 180 days after service on him or her of a written notice that the default or default judgment has been entered. ⁵

(Code Civ. Proc., § 473.5.)

Personal service may be accomplished by personally delivering a copy of the summons and complaint to the person to be served. (Code of Civ. Proc., § 415.10.) If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person being served, substitute service may be effected by leaving a copy of the summons and complaint at the person's "dwelling house, usual place of abode, usual place of business, or usual mailing address . . . in the presence of . . . a person apparently in charge . . . and by thereafter mailing a copy of the summons and complaint by first-class mail . . . to the person to be served at the place where a copy of the summons and complaint were left." (Code of Civ. Proc., § 415.20, subd. (b).)

Code of Civil Procedure section 473, subdivision (d) provides that:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

(Code Civ. Proc., § 473(d).)

Motion to Set Aside Entry of Default

Relief Pursuant to CCP § 473.5

Defendant moves to set aside the default on the ground that its managing partner, Mark Moss, had no actual notice of this action until May 29, 2026, when he received Plaintiff's Notice of Application for Court Judgment in the mail. Defendant asserts that all pleadings and notices were directed to 815 W. 7th Street, Los Angeles, the mailing address on file with the Secretary of State, which Moss describes as an address associated with a different restaurant. (Moss Decl., ¶¶ 3, 5, 8.)

Section 473.5 applies "[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action." (Code Civ. Proc., § 473.5, subd. (a).) The statute is directed at the party litigant. "Actual notice" under section 473.5 "means genuine knowledge of the party litigant." (Rosenthal v. Garner (1983) 142 Cal.App.3d 891, 895.)

The threshold predicate for relief is absent here. The party litigant is Wil Fig LLC. Wil Fig LLC was served, appeared, filed an Answer through counsel, and participated in this litigation for approximately a year before its counsel moved to be relieved. That general appearance is dispositive of the jurisdictional premise of the motion. (Code Civ. Proc., § 410.50, subd. (a).) Whatever the state of the

Secretary of State's records, service of the summons plainly did result in actual notice to the party, because the party responded to it with a pleading.

Nor did the default arise from any defect in service. It arose from the striking of Defendant's Answer as a sanction following an Order to Show Cause, after Defendant, an entity that cannot appear in propria persona, failed for more than eight months to retain replacement counsel. As Plaintiff correctly observes, a default entered after an answer is stricken is "less of an affirmative 'tactical' choice not to participate in the lawsuit in the first place . . . and more of a sanction" for how the case was litigated. (Sass v. Cohen (2019) 32 Cal.App.5th 1032, 1041.) Section 473.5 supplies no remedy for that.

Defendant's argument is that current management did not personally know of the case. Moss declares that during the pendency of this action his former partner "managed the company's administrative and legal affairs," handled all correspondence and legal notices, and that Moss was not made aware of the litigation "nor did I have any actual knowledge of the case or the answer previously filed on behalf of the company." (Moss Decl., ¶ 6.) That paragraph concedes the point. It acknowledges that an answer was filed on the company's behalf and locates the failure of internal communication inside the company. A corporate defendant does not reset the notice clock each time its management changes hands. The knowledge of the partner who was managing the company's legal affairs during the relevant period is the knowledge of Wil Fig LLC.

Section 473.5 additionally conditions relief on an affidavit showing under oath that the movant's lack of actual notice in time to defend "was not caused by his or her avoidance of service or inexcusable neglect." (Code Civ. Proc., § 473.5, subd. (b).) Moss's declaration attributes the failure to respond to "pure clerical oversight regarding the Secretary of State address." (Moss Decl., ¶ 8.) Maintaining a current address with the Secretary of State is Defendant's statutory obligation. A defect in Defendant's own corporate filings is not a defect in Plaintiff's service, and the failure to correct it over the course of years is not the sort of oversight the statute excuses. More fundamentally, the declaration does not address the operative neglect at all. The Answer was stricken because Defendant did not appear at the Order to Show Cause or obtain counsel, and Defendant made no effort to participate until the prospect of a monetary judgment materialized.

The motion is timely in the abstract, and Defendant has satisfied the procedural requirement of subdivision (b) by attaching a proposed Answer as Exhibit A. Neither cures the failure on the merits.

Relief under CCP § 473.5 is DENIED.

Void Judgment

Defendant next contends that any default judgment will be void because the Complaint states no specific dollar amount of damages, so that a monetary judgment would exceed the demand and the Court's jurisdiction. (Code Civ. Proc., § 580, subd. (a); Greenup v. Rodman (1986) 42 Cal.3d 822, 824.)

Section 473(d) authorizes the Court to "set aside any void judgment or order." No default judgment has been entered in this action. The prove-up hearing was continued to prioritize this motion, and the Court's file reflects no judgment. There is accordingly no judgment, void or otherwise, for the Court to set aside. The ground is not ripe.

At most, Defendant's authority establishes a limit on what may be awarded at the prove-up. In any event, that is a question for the prove-up hearing.

Relief under CCP § 473(d) is DENIED.

Equitable Relief

Defendant argues in the alternative that the Court should exercise its inherent equitable power to vacate the default, invoking the policy that controversies be resolved on their merits. (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 694-703.)

A party seeking equitable relief from a default after the six-month period of section 473(b) has run must show extrinsic fraud or extrinsic mistake, and must satisfy a stringent three-part test: a meritorious defense, a satisfactory excuse for not presenting a defense in the first instance, and diligence in seeking to set aside the default once discovered. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981-982.) Relief is unavailable where the moving party's own negligence produced the default; such error is intrinsic. (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 472-473.)

Defendant cannot make the second showing. It was not "deprived of a fair adversary hearing through no fault of their own." It had counsel, filed an Answer, litigated for a year, then stopped. Its counsel was relieved in January 2025; it did not retain new counsel until June 2026. The Court issued an Order to Show Cause

and struck the Answer only after Defendant failed to respond. The breakdown Moss describes, in which one partner departed and the company's legal affairs went unattended, is an internal failure of the party itself. That is intrinsic neglect, and it is the precise circumstance in which equitable relief is withheld.

The diligence showing fares no better. Defendant acted only when the threat of a monetary judgment became concrete. The Court also notes that discretionary relief under section 473(b) is unavailable, the default having been entered September 10, 2025, more than six months before this motion was filed, and Defendant does not invoke that subdivision. Late requests for relief are jurisdictionally barred.

Equitable relief is DENIED.

Conclusion

Given the foregoing, the Motion to Set Aside Default is DENIED.

Plaintiff to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.